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23 December 2024

DECISION

Subject: Complaint XXXXXXXX vs Eurolife Ltd

I have been instructed to refer to the complaint submitted to our Office on 08/11/2024 by Mr. XXXXXXXX (hereinafter referred to as the "Complainant") against Eurolife Ltd (hereinafter referred to as the "Respondent") regarding the disclosure of his personal data related to the termination of his employment to a third unauthorized recipient, as well as your response letter dated 12 December 2024, and I wish to inform you of the following:

The Complainant's Claims

2.1.1. The Complainant was employed by the Respondent as XXXXXXXX since January of XXXXX.

2.1.2. On XXXXX 2024 in the afternoon, between the hours of 16:30-17:00, a copy of a letter from the Respondent dated XXXXX regarding the immediate termination of his cooperation with the Respondent was delivered to his parental home. The letter was delivered by a messenger of the Respondent who, after the Complainant's father refused to accept it on his behalf, threw it on the floor and left. The Complainant states that the letter was not sealed in an envelope, resulting in any third party being able to read its contents. On the same day, he was informed by phone by his father about the contents of the letter. The Respondent never personally informed him, either before or after the letter was sent.

2.1.3. The next day, he contacted his supervisor's secretary by phone to arrange for the collection of his personal belongings from his office and the return of the Respondent's property that had been provided to him, and requested that the original termination letter and proof of receipt of the letter delivered to his parental home on XXXXX be handed over to him in his presence.

2.1.4. The Complainant's visit to the Respondent's offices took place on XXXXX. During the meeting, the Complainant reiterated his initial request, asking for the original termination letter as well as proof that it had been delivered to an authorized recipient. He was informed, however, that these documents did not exist. Despite the initial lack of documents, the Complainant insisted on being provided with the original termination letter. Following this, the Respondent agreed to prepare a new letter dated XXXXX, including the same content, and requested him to sign it with the receipt date being XXXXX. We have a copy of this letter in our possession.

2. Claims of the Respondent

2.1. In your response letter dated XXXXX, you state that the letter was delivered to the Complainant's father on XXXXX following a Sworn Statement of Delivery by a private process server in accordance with the Civil Procedure Rules. You also note that the Complainant was informed on XXXXX about the termination via his personal email and that he was being examined and continues to be examined for XXXXX against the Respondent.

2.2. You also note that the process server did not deliver a sealed letter to the Complainant's father "as expressly permitted by Part 6.4.(3)(i) of the Civil Procedure Rules."

2.3. Finally, you state that based on the internal procedures of the Respondent, the delivery of confidential or other privileged documents to former employees/associates is first done by informing them via their personal email and/or following the above-mentioned delivery procedure.

3. Legal Aspect

Article 57 of the GDPR:

"1. Subject to the other duties laid down in this Regulation, each supervisory authority within its territory,

(a) monitors and enforces the application of this Regulation, [...]

(f) handles complaints lodged by the data subject [...]"

Article 4 of the GDPR:

«1) “personal data”: any information relating to an identified or identifiable natural person (“data subject”); an identifiable natural person is one whose identity can be ascertained, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person,

2) “processing”: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction, [...]

7) “data controller”: the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; [...]

9) “recipient”: the natural or legal person, [...], to whom the personal data are disclosed, whether a third party or not. [...]

12) “personal data breach”: a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed.

Article 5 of the GDPR

“1. Personal data:

a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject (“lawfulness, fairness, and transparency”), [...]

f) shall be processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (“integrity and confidentiality”).

2. The data controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 (“accountability”).”

Article 6 of the GDPR:

“1. Processing shall be lawful only if and to the extent that at least one of the following applies:

b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract,

c) processing is necessary for compliance with a legal obligation to which the data controller is subject,

d) processing is necessary in order to protect the vital interests of the data subject or of another natural person,

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller,

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.”

Recital 39 of the GDPR:

“(39) Any processing of personal data should be lawful and fair. [...]. Personal data should be processed in a manner that ensures appropriate security and confidentiality of personal data, including protection against unauthorized access to or unauthorized processing of personal data and against accidental loss, destruction, or damage to personal data.”

Recital 40 of the GDPR:

“(40) In order for processing to be lawful, personal data should be processed on the basis of the consent of the data subject or on another legal basis provided for by law, either in this Regulation or in other Union or Member State legislation [...] or on the necessity of performing a contract to which the data subject is a party [...]”.

Article 24 of the GDPR:

“1. Taking into account the nature, scope, context, and purposes of processing, as well as the risks of

varying likelihood and severity of the rights and freedoms of natural persons, the controller shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk.”

Regarding the rights and freedoms of natural persons, the data controller applies appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation. These measures are reviewed when deemed necessary [...].

Article 58(2) of the GDPR:

“Each supervisory authority shall have the following corrective powers:

(d) to order the data controller or the processor to bring processing operations into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specified time limit [...]”.

4. Reasoning:

4.1. On XX/XX/XXXX, the complainant informed the respondent in writing via their personal email about the termination of their employment, complying with labor legislation and the provisions regarding the termination of the Contract XX/XX/XXXX that had been concluded with the respondent.

4.2. Furthermore, and independently of the aforementioned notification, on XX/XX/XXXX, the complainant delivered the same termination letter to XX/XXXX of the respondent. The letter was not sealed in an envelope, resulting in the disclosure of personal data of the respondent to unauthorized recipients (the XX/XXXX of the respondent and the private process server), and in violation of the provisions of the GDPR which require that every processing operation is carried out in a manner that ensures the necessary protection and confidentiality of personal data.

4.3. When asked about the legal basis on which the complainant relied for the above delivery, they responded that the delivery was made following an Affidavit of Service by a private process server as per the provisions of Part 6.4.(3)(i) of the Civil Procedure Rules (hereinafter referred to as the “Rules”).

4.4. For the sake of clarity and understanding of the reasoning of this Decision, it is clarified that the primary purpose of the Rules is to serve as a judicial guide, providing the court with the necessary tools for managing cases in a transparent and fair manner. The Rules apply to all proceedings that fall under the jurisdiction of the District Courts in the field of civil justice.

4.5. The termination of an employment contract between a private enterprise and an employee, as well as the related notification communicated to the employee, fall within the scope of the execution of the employment contract.

4.6. In examining the complaint, the following mitigating factors were taken into account:

- A. (a) the cooperation of the complainant with our Office,
- (b) the general level of compliance with the GDPR demonstrated by the complainant,
- (c) the absence of a similar previous incident and complaint prior to the one under examination.

As well as the following aggravating factors:

- D. (a) the delivery of the said letter to the father of the complainant despite his refusal to accept it and in the absence of a proper legal basis.
- (b) The fact that the letter was delivered without being sealed in an envelope, resulting in the disclosure of its content to third parties, constitutes a breach of personal data, as the necessary protection and confidentiality of the data were not ensured.

6. Conclusion:

6.1. Taking into account all the evidence presented before me and based on the powers conferred upon me by the General Data Protection Regulation (GDPR), I impose a Reprimand on the complainant for the violation of Articles 5(1)(a) and (f), 6, and 24(1).

6.2. Furthermore, I issue an Order for the immediate review and amendment of the procedure for delivering termination notices by the complainant, with a deadline of one month from the receipt of this decision. This amendment must ensure the compliance of the procedure with the requirements of the GDPR, ensuring the existence of an appropriate legal basis for this processing.

6.3. It is noted that, in the event of non-compliance with the above or the submission of a new complaint to our Office regarding the same issue, this will be treated more strictly.

****Eirini Loizidou Nikolaidou****

****Commissioner for Personal Data Protection****